

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nathaniel Flack	Team: Squad #03	CCRB Case #: 201606719	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 07/18/2016 12:10 AM	Location of Incident: I-95 near Exit 7	18 Mo. SOL 1/18/2018	Precinct: 45		
Date/Time CV Reported Sat, 07/30/2016 4:19 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 08/05/2016 11:28 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Hart	26047	941142	HWY 01
2. POM Allen Wang	10828	947594	HWY 01

Officer(s)	Allegation	Investigator Recommendation
A . POM Allen Wang	Abuse: Police Officer Allen Wang stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . POM Matthew Hart	Force: Police Officer Matthew Hart pointed his gun at § 87(2)(b)	B . Substantiated
C . POM Matthew Hart	Abuse: Police Officer Matthew Hart threatened § 87(2)(b) with the use of force.	C . Unsubstantiated
D . POM Matthew Hart	Force: Police Officer Matthew Hart used physical force against § 87(2)(b)	D . Exonerated
E . POM Allen Wang	Force: Police Officer Allen Wang used physical force against § 87(2)(b)	E . Exonerated
F . POM Matthew Hart	Abuse: Police Officer Matthew Hart frisked § 87(2)(b)	F . Exonerated
G . POM Matthew Hart	Abuse: Police Officer Matthew Hart searched § 87(2)(b)	G . Substantiated

Case Summary

§ 87(2)(b) filed this complaint with IAB via telephone on July 30, 2016.

At approximately 12:10 am on July 18, 2016, § 87(2)(b) who was § 87(2)(b) old at the time, was driving on I-95 in the Bronx with his wife § 87(2)(b). When they reached the vicinity of Exit 7, they encountered traffic, and § 87(2)(b) pulled the vehicle onto the shoulder of the highway to install a GPS device. PO Allen Wang and PO Matthew Hart of Highway Unit 1, who were at the scene due to an unrelated car accident, approached the vehicle to issue a summons for driving on the shoulder of the highway (**Allegation A**). PO Wang collected § 87(2)(b)'s license and returned to the patrol car, which was parked behind § 87(2)(b)'s vehicle. While PO Wang and PO Hart sat in the patrol car writing the summons, § 87(2)(b) exited his vehicle and walked towards the passenger side window of the patrol car to ask the officers a question, in spite of commands for him to return to his vehicle issued over the patrol car's loudspeaker system. PO Hart drew his firearm and pointed it at § 87(2)(b) through the closed passenger side window (**Allegation B**), and allegedly said to § 87(2)(b) that he would shoot or kill him (**Allegation C**). Both officers exited the patrol car and forcibly placed § 87(2)(b) in handcuffs (**Allegations D and E**). PO Hart frisked § 87(2)(b) and opened the fanny pack he was wearing in order to inspect its contents for weapons (**Allegations F and G**). § 87(2)(b) was placed in the back of the patrol car, while PO Wang completed the summons for § 87(2)(b), and prepared an additional summons for § 87(2)(b). When the summonses were completed, § 87(2)(b) was escorted back to his car and given permission to leave.

§ 87(2)(g)

§ 87(2)(g)

The investigation obtained dashboard camera footage of the incident from the NYPD, the relevant portions of which are excerpted below as Snagit 1 (Board Review 01), Snagit 2 (Board Review 02), and Snagit 3 (Board Review 21).



Snagit 1.mp4



Snagit 2.mp4



Snagit 3.mp4

Mediation, Civil, and Criminal Histories

- § 87(2)(b) rejected mediation § 87(2)(b)
- On November 15, 2016, the Comptroller's Office notified the CCRB that no Notice of Claim has been filed regarding this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first complaint with the CCRB. § 87(2)(b), § 87(2)(g)
- In ten years with the NYPD, PO Hart has been a subject officer in three previous CCRB cases, which included three allegations, including force and a threat of arrest. No allegations against PO Hart have been substantiated, § 87(2)(g)
- In eight years with the NYPD, this is PO Wang's third CCRB complaint. The four prior allegations against PO Wang include a stop, frisk, search, and discourtesy. No allegations against PO Wang have been substantiated, § 87(2)(g)

Potential Issues

- In her August 22, 2016 phone statement (Board Review 03), § 87(2)(b) said that she could not see § 87(2)(b) being placed in handcuffs or being led to or from the patrol car because she was seated in vehicle facing away from the patrol car.

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(b) complained during his interview at the CCRB that the officers did not introduce themselves to him. However, he clarified that he did not ask for their names. § 87(2)(g)
- § 87(2)(g)

Allegation A: Abuse of Authority – Police Officer Allen Wang stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

In his August 10, 2016 interview at the CCRB, § 87(2)(b) said that during the early morning hours of July 17, 2016, § 87(2)(b) was driving his Toyota Highlander on the I-95 expressway in the Bronx, with his wife § 87(2)(b) in the passenger seat. At approximately 1 am, § 87(2)(b) encountered severe traffic on I-95. He was in the vicinity of Exit 7, just past where I-95 crosses the Hutchinson Parkway. § 87(2)(b) pulled over onto the shoulder to install his GPS device on the dashboard to find a new route. While installing the device, § 87(2)(b) noticed a stationary, marked NYPD vehicle approximately 50 feet behind his car. He then saw PO Matthew Hart and PO Allen Wang approach his vehicle on foot. PO Wang asked § 87(2)(b) for his license and other paperwork, which § 87(2)(b) provided to him. § 87(2)(b) did not understand why he had been stopped or what was happening with the highway.

§ 87(2)(b)'s July 30, 2016 phone statement to IAB and his CCRB telephone statements on July 18, 2016 (Board Review 07) and August 8, 2016 were generally consistent with his interview.

In a written statement (Board Review 19) § 87(2)(b) provided during his interview, which was written on an unknown date after his initial complaint was referred to OCD, he said that after encountering traffic he drove on the shoulder of the road until he was prevented from driving further by a stopped blue car.

§ 87(2)(b)'s phone statement on August 22, 2016 was generally consistent with § 87(2)(b)'s interview.

PO Wang said during his interview (Board Review 08) that he and PO Hart were dispatched to a car accident on I-95, near Exit 7. While PO Wang and PO Hart were parked on the scene of the accident, PO Hart stopped a vehicle for driving in the emergency lane and began issuing it a summons. As PO Hart was speaking with this driver, PO Wang saw § 87(2)(b)'s vehicle traveling at approximately 15 to 20 miles per hour in the shoulder on the right hand side. PO Wang made the decision to stop § 87(2)(b)'s vehicle, and instructed the vehicle to pull over. He could not recall whether he was in the patrol car or foot when he first observed § 87(2)(b) or how he instructed § 87(2)(b) to stop.

PO Hart's interview (Board Review 09) was generally consistent with PO Wang's. PO Hart was speaking to the motorist he had stopped, at the window of that person's car, when he saw PO Wang pulling the patrol car up behind § 87(2)(b)'s car. § 87(2)(b) came to a stop behind the motorist that PO Hart had stopped. PO Hart said it is only legal to occupy the shoulder if you have an emergency such as a heart attack or pregnancy.

At the opening of Snagit 1, the patrol car pulls up behind a grey Toyota SUV, which is stationary on the right shoulder of the highway. At 13 seconds, PO Matthew Hart exits the RMP and walks from the passenger side towards the grey Toyota. He stops at the door of the Toyota and asks, "What are you doing?" § 87(2)(b) audibly responds, but the words are not decipherable. As § 87(2)(b) talks, PO Wang walks up to the driver's side door and stops next to PO Hart. At 40 seconds, PO Hart walks away from § 87(2)(b) to speak to another motorist, whose vehicle is in front of § 87(2)(b)'s. At 1:21, PO Hart rejoins PO Wang at § 87(2)(b).

§ 87(2)(b)'s window. At 1:40, one of the officers says, "Stand by, I'm gonna write you a ticket." Both officers walk to the patrol car.

§ 87(2)(b) was issued summons number § 87(2)(b) for § 87(2)(b) (Board Review 20).

No motor vehicle shall be driven over, across, along, or within any shoulder or slope of any state controlled-access highway. NY VTL, §1131 (Board Review 10). Police may stop a vehicle based upon a reasonable suspicion that the driver or occupants of the vehicle have committed a crime. People v. Taylor, 31 A.D.3d 1141 (Board Review 11).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Exonerated**.

Allegation B: Force – Police Officer Matthew Hart pointed his gun at § 87(2)(b)

It is undisputed that PO Hart pointed his gun at § 87(2)(b)

In his August 10, 2016 interview at the CCRB, § 87(2)(b) said that after the officers had returned to the patrol car, he opened the driver's side door of his vehicle, and stepped out because he wanted to ask the officers a question. He had nothing in his hands, and was wearing a black fanny pack containing loose papers. As he opened the door, he stood up with his left hand raised, turned around towards the RMP, and said "I have a question." PO Hart raised his right hand towards him at chest level, with a clenched fist, apparently pointing a gun at him. This occurred before § 87(2)(b) had the opportunity to take a step towards PO Hart. § 87(2)(b) did not see the gun itself, due to the darkness, but concluded that PO Hart was pointing his gun at him based on the gesture.

§ 87(2)(b) said in his August 8, 2016 phone statement to the CCRB that after he exited his car, PO Hart had his hand on his gun.

In his July 30, 2016 statement to IAB, § 87(2)(b) said that he attempted to leave his vehicle after PO Wang had returned to the patrol car. He tried to ask a question to PO Hart, who was standing adjacent to and outside of the patrol car. PO Hart removed his gun from his holster on his right side when § 87(2)(b) exited, and pointed it at § 87(2)(b)

In his July 18, 2016 CCRB phone statement, § 87(2)(b) did not allege that PO Hart pointed his gun at him. He said that he approached the patrol car, where PO Hart was seated, and asked him, "What was wrong with the road?"

§ 87(2)(b)'s written statement did not allege that PO Hart pointed his gun at him.

PO Hart said that after returning to the patrol car, which was approximately a car's length behind behind § 87(2)(b)'s vehicle, PO Hart sat in the passenger seat and PO Wang sat in the driver's seat. Less than a couple of minutes later, § 87(2)(b) stepped out of the car. His arms were flailing around the level of his head and it looked as if he was yelling, but PO Hart could not hear what he said. § 87(2)(b) stood at the open door of his vehicle flailing his arms for several seconds, which gave PO Hart time to pick up the microphone inside the patrol car and say over the PA system repeatedly, "Get back in your car." § 87(2)(b) did not get back in his car. PO Hart felt at this time that his safety was threatened because § 87(2)(b) was not heeding his commands. § 87(2)(b) started to walk towards the patrol car while flailing his arms above his shoulders. PO Hart continued saying repeatedly through the loudspeaker, "Get back in your car" and other things to that effect. PO Hart could still not hear what § 87(2)(b) was saying as he approached. PO Hart noticed that § 87(2)(b) had a fanny pack around his waist. He could not tell if the fanny pack was sagging as if it contained a heavy object. When asked to estimate the size of the fanny pack, PO Hart said it was large enough to hold a knife. PO Hart did not remember anything else about what § 87(2)(b) was wearing. PO Hart did not observe any bulges on § 87(2)(b)'s person. § 87(2)(b) continued approaching the patrol car. It took him several seconds to reach the front of the patrol car.

When § 87(2)(b) reached the passenger side front corner of the patrol car, § 87(2)(b) started placed his left hand on his fanny pack while his right arm was still raised above his head. PO Hart could not tell if the fanny pack was open or if § 87(2)(b) was trying to open or reach inside it. PO Hart could not tell if § 87(2)(b) was gripping anything inside the fanny pack. When § 87(2)(b) moved his hand to his fanny pack, PO Hart unholstered his service weapon. Reaching towards the fanny pack, in addition to § 87(2)(b)'s apparent agitation and refusal to return to his car, made PO Hart fear for his safety. PO Hart at first held his weapon low with his left hand, by the door of the car, but he pointed it at § 87(2)(b) through the mostly-closed passenger side window as § 87(2)(b) approached, until he was standing directly against PO Hart's window, with his fanny pack almost touching the door. PO Hart did not want to open his car door into § 87(2)(b) because he was "an elderly gentleman" and opening the passenger door would have knocked him over. PO Hart instructed § 87(2)(b) to get away from the door through the window. PO Wang exited the patrol car through the driver's side door, and guided § 87(2)(b) away from the door (discussed below under allegations C and D. PO Hart holstered his firearm and exited the patrol car. PO Hart said that during his career as a police officer, he has received "intel alerts" advising officers to be aware of individuals who use a fanny pack "as a holster." He said he was not referring to any specific alert he had received, but to "general alerts over time," and he could not recall the most recent instance of such an alert. There were no other factors besides those discussed above that led PO Hart to fear for his safety. PO Hart did not discuss drawing the weapon with PO Wang because § 87(2)(b) was an immediate threat to their lives and safety. PO Wang did not draw his weapon.

PO Wang stated that when § 87(2)(b) stepped out of his vehicle, PO Wang repeatedly told him to return to his vehicle over the loudspeaker. PO Wang did not remember if § 87(2)(b) made any gestures or movements as he exited his car or as he approached the patrol car. § 87(2)(b) appeared agitated, based on his facial expressions and other factors which

PO Wang could not recall. PO Wang feared for his safety because § 87(2)(b) was approaching the patrol car and ignoring commands. § 87(2)(b) approached the passenger side of the patrol car, where PO Hart was seated, and PO Wang saw PO Hart pointing his gun towards the passenger side window at § 87(2)(b) who was now standing on the other side of the window. PO Wang did not know at what point PO Hart drew his weapon. The passenger side window was closed. § 87(2)(b) was standing close enough to the passenger side of the patrol car that the passenger door could not have been opened fully. PO Wang had his right hand on his gun, but that he did not believe he had drawn it.

At 33 seconds in Snagit 1, PO Hart can be heard saying at § 87(2)(b)'s vehicle window, "He's getting a ticket, driving...shoulder, same that thing you are." § 87(2)(b) replies, "I do not know what is wrong." At 1:13, PO Wang says, "Really, you can't [indecipherable] like everybody else?" At 1:34, § 87(2)(b) is gesturing out the window of the Toyota, and one of the officers tells § 87(2)(b) to keep his hands inside the car, which § 87(2)(b) does. At 1:50, PO Hart can be heard saying, "He really has to know why the I-95 is shut down," as the officers walk back to their vehicle.

At 0 seconds in Snagit 2, § 87(2)(b) opens the driver's side door of the Toyota and exits the vehicle. He is wearing a fanny pack. He stands in front of the open door with his arms at his side until 5 seconds, and then closes the door. He is not yelling. At 5 seconds, one of the officers says over the loudspeaker, "Sit in the car." § 87(2)(b) makes a gesture commonly understood to mean that he is going to approach, and begins walking towards the patrol car at a normal pace. He appears to have a small piece of paper in his hand. The voice on the loudspeaker continues to say "Sit in the car" repeatedly, in an increasingly loud tone. § 87(2)(b) continues walking towards patrol car, approaching the passenger's side. He reaches the front of the patrol car at 10 seconds. At 11 seconds, he walks off the frame to the right, continuing towards the passenger's side door of the patrol car. The loudspeaker continues to command him to sit in his car. At 23 seconds, indecipherable yelling can be heard. At 40 seconds, § 87(2)(b) reenters the frame from the right side, walking quickly back towards the Toyota. He is followed closely by PO Hart on foot, who is not holding a weapon.

An officer may draw and point their firearm if they have a reasonable fear for their own or any other person's safety. Determinations of whether the pointing of a firearm rises to the level of misconduct must be made by assessing the reasonableness of the officer's actions in the totality of the surrounding circumstances. PD v. Gliner, OATH Index No. 955/00 (Board Review 14).

The decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present. Drawing a firearm prematurely or unnecessarily limits a uniformed member's options in controlling a situation and may result in the unwarranted or accidental discharge of the firearm. PG 221-01 (Board Review 12).

Deadly physical force, which includes the discharge of a firearm, can only be used when it is reasonably necessary to protect MOS and/or the public from imminent serious physical injury or death. In determining whether a given use of force is reasonable, members of the service should consider the size, age, and condition of the subject in comparison to the MOS; number of subjects in comparison to the number of MOS; and the nature and severity of the crime. PG 221-01.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Substantiated**.

Allegation C: Abuse of Authority – Police Officer Matthew Hart threatened § 87(2)(b) with the use of force.

§ 87(2)(b) said in his interview that after PO Hart had his gun pointed at him, PO Hart said, “Stop, or I’ll kill you.”

§ 87(2)(b) said in his August 8, 2016 phone statement that PO Hart placed his hand on his gun and instructed § 87(2)(b) to return to his vehicle, or else PO Hart would kill him.

§ 87(2)(b) said in his July 30, 2016 phone statement to IAB that PO Hart stated, “I will kill you if you don't put your hands on the roof of the car.”

§ 87(2)(b) did not specifically mention this allegation in his July 18, 2016 phone statement or his written statement.

PO Hart said that neither he nor PO Wang ever told § 87(2)(b) that he would be shot or killed if he did not return to his car or continued to approach the patrol car. PO Hart denied verbally threatening to use force against § 87(2)(b).

PO Wang said that he did not make any statement to § 87(2)(b) that he would be shot or killed. He did not know if PO Hart made any statement to that effect, but did not think so.

Neither officer is heard in the video saying that they will kill § 87(2)(b). Only the officer speaking coming over the loudspeaker is audible, and additional undecipherable words can be heard at 20 seconds in the video.

§ 87(2)(g)
Therefore,
it is recommended that **Allegation C** be closed as **Unsubstantiated**.

Allegation D: Force – Police Officer Matthew Hart used physical force against § 87(2)(b)

Allegation E: Force – Police Officer Allen Wang used physical force against § 87(2)(b)

In his interview, § 87(2)(b) said that after PO Hart threatened to kill him, he ordered § 87(2)(b) to put his hands on the roof of his vehicle, which § 87(2)(b) immediately did. PO Hart then approached § 87(2)(b) from behind, placed his hands behind his back, and placed him in handcuffs. PO Hart then raised § 87(2)(b)'s hands behind his back, forcing § 87(2)(b) to lean forward, and led him to the patrol car by the hands. This position forced § 87(2)(b) to bend over forward, with his head near to the level of his waist (§ 87(2)(b) demonstrated the position physically). PO Hart then placed § 87(2)(b) in the back of the RMP, helping him to get inside. After being in the back of the RMP for approximately 30 minutes, § 87(2)(b) had difficulty walking back to his own car due to the physical stress of being placed in handcuffs and in the back of the RMP, and asked for further assistance. PO Hart then picked § 87(2)(b) up from behind, wrapping his arms around § 87(2)(b)'s torso, and carried him to his vehicle. Once at the vehicle, both officers assisted § 87(2)(b) in removing the handcuffs. § 87(2)(b) believed he suffered a hernia from being forced to bend over, and complained of redness and pain in his hands and wrists from the handcuffs. § 87(2)(b) sought medical treatment within several days of the incident.

In his August 8, 2016 phone statement, § 87(2)(b) stated that after PO Hart threatened him, he ran back to his own vehicle. PO Hart instructed § 87(2)(b) to put his hands on the

roof of his vehicle, which he did. PO Hart then placed § 87(2)(b) in handcuffs and walked him to the RMP, placing him in the back. The handcuffs caused swelling and pain to § 87(2)(b)'s hands.

§ 87(2)(b)'s July 30, 2016 phone statement was generally consistent with his interview. § 87(2)(b) said that PO Hart ordered him to put his hands on the roof of his car, and then approached § 87(2)(b) with his gun still in his hand. PO Hart then stood behind § 87(2)(b) and took each of his hands behind his backs and placed him in handcuffs. PO Hart then led § 87(2)(b) in handcuffs to the RMP, holding § 87(2)(b)'s hands close to his neck. This position caused § 87(2)(b) substantial pain. § 87(2)(b) told PO Hart that he was § 87(2)(b) old, and asked what he was doing.

§ 87(2)(b) did not refer specifically to this allegation during July 18, 2016 phone statement.

§ 87(2)(b) said in his written statement that an officer forcibly placed his hands on top of his car, causing him pain, before placing him in handcuffs.

PO Hart said that after he drew his firearm, PO Wang exited the patrol car, went around the back of the car, and approached § 87(2)(b). PO Wang put his hands on § 87(2)(b)'s shoulders from the side and pulled or pushed him from the patrol car, guiding him to walk away. § 87(2)(b) appeared to be resisting somewhat. PO Hart could not hear if PO Wang issued any commands to § 87(2)(b) at this time. PO Hart holstered his firearm and exited the patrol car through the driver's side door as PO Wang moved § 87(2)(b) until he was near the back of his own vehicle. PO Hart approached § 87(2)(b) and began to place him in handcuffs. The purpose of handcuffing § 87(2)(b) was for officer safety and to "see if he had a weapon on him." He resisted being placed in handcuffs. PO Hart took hold of both of § 87(2)(b)'s hands, pulled them behind his back, and applied the handcuffs. § 87(2)(b) was trying to pull his hands away from PO Hart, but PO Hart was able to pull his hands back. PO Hart was telling § 87(2)(b) to put his hands behind his back and not to resist. It took several seconds to place § 87(2)(b) in handcuffs. No further force was needed to place § 87(2)(b) in handcuffs. § 87(2)(b) walked back to the patrol car without any force used. § 87(2)(b) was told to sit and get inside the car. He sat on the back seat of the car, with his feet on the ground still outside the car, and did not want to put his feet in the car despite orders to do so. Both PO Hart and PO Wang lifted § 87(2)(b)'s feet off of the ground and rotated his body so that he was fully inside the car. PO Hart never carried § 87(2)(b) during the incident. While in the patrol car, § 87(2)(b) complained that the handcuffs were too tight, but he never complained of any pain in his abdomen.

PO Wang said that as § 87(2)(b) stood at the patrol car window, he told PO Hart he was going to get out of the patrol car, and exited through the driver's side door. PO Wang walked around the back of patrol car and took hold of § 87(2)(b)'s upper arm with both of his hands. PO Wang escorted § 87(2)(b) who complied, away from PO Hart's door so that PO Hart could open the door. When asked to describe § 87(2)(b)'s demeanor prior to being moved from the patrol car, PO Wang said that anyone who has a firearm pointed at them is "surprised and agitated." PO Hart exited the patrol car and took hold of § 87(2)(b). PO

Wang took his hands off of § 87(2)(b) and § 87(2)(b) and PO Hart escorted § 87(2)(b) back to his car. PO Hart placed § 87(2)(b) against the side of his car and placed him in handcuffs. It did not take long to place § 87(2)(b) in handcuffs. PO Wang first said that § 87(2)(b) did not resist, but later in the interview said he did try to prevent PO Hart from placing him in handcuffs. PO Wang grabbed one of § 87(2)(b)'s hands to assist PO Hart in putting on the handcuffs. § 87(2)(b) did not complain about any pain. PO Wang did not remember what § 87(2)(b) was saying. After viewing the dashboard camera footage, PO Wang noted that the traffic on the road visible in the video was a danger to § 87(2)(b) and added that § 87(2)(b) was also a danger to other drivers on the highway.

At 40 seconds in Snagit2, § 87(2)(b) re-enters the frame from the right side, walking quickly back towards the Toyota. He is followed closely by PO Hart on foot. At 42 seconds, § 87(2)(b) turns to face PO Hart. At 44 seconds, PO Wang enters the frame following PO Hart. At 45 seconds, PO Hart takes hold of § 87(2)(b)'s left arm with both hands, rotates him towards his car, which they are now standing next to, and places § 87(2)(b) front-forward against the car. PO Wang is standing between the camera and § 87(2)(b) and may also have his hands on § 87(2)(b) though § 87(2)(b) is barely visible behind him. At 47 seconds, § 87(2)(b)'s arms are intermittently visible, tucked in front of his body, and he appears to be twisting his torso. PO Wang uses his right arm to try to pull § 87(2)(b)'s left arm behind his back, and it appears as though § 87(2)(b) resists this. PO Hart appears to use both hands to pull § 87(2)(b)'s arms behind his back (PO Hart's hands are obscured by PO Wang). § 87(2)(b) appears to be placed in handcuffs at 1:04. At 1:08, PO Wang steps away from § 87(2)(b) revealing that he is now in handcuffs. PO Hart walks § 87(2)(b) towards the RMP with his left hand on § 87(2)(b)'s right arm.

At 7 seconds in Snagit 3, PO Hart walks § 87(2)(b) back to his car with his right hand on § 87(2)(b)'s left arm. The handcuffs are removed at 46 seconds while § 87(2)(b) stands next to his car. § 87(2)(b) appears to show his wrists to the officers. § 87(2)(b) enters his car at 57 seconds.

§ 87(2)(a) PHL § 18(6)

When a member of the service must gain compliance, control, or custody of an uncooperative subject, they will use no more than the reasonable force necessary to gain control, and rear cuff the subject when practical. PG 221-02 (Board Review 13).

§ 87(2)(g)

§ 87(2)(g)

[REDACTED]

[REDACTED] Therefore, it is therefore recommended that **Allegations D** and **E** be closed as **Exonerated**.

Allegation F: Abuse of Authority – Police Officer Matthew Hart frisked § 87(2)(b)

Allegation G: Abuse of Authority – Police Officer Matthew Hart searched § 87(2)(b)

§ 87(2)(b) did not allege being frisked or searched in any of his statements.

PO Hart said that after § 87(2)(b) was in handcuffs and had been walked back to the patrol car, he frisked § 87(2)(b) to check for weapons. § 87(2)(b) stood against the patrol car with his legs spread, and PO Hart patted down his shoulders, his arms, his legs, his waist-band area, and around his ankles. PO Hart then removed the fanny pack from § 87(2)(b)'s body. PO Hart patted the outside of the fanny pack, and “it didn’t seem like there was anything that was going to hurt [him].” The fanny pack was “hard,” but he did not feel any particular outline of any weapon inside. PO Hart then corrected himself and said that the fanny pack was “soft” but that there was something “hard” inside it, but it did not feel like a weapon. He opened the fanny pack, to “double check” that there was not a weapon. PO Hart did not remember what was inside the fanny pack, but there was no weapon inside. He closed the fanny pack and placed it on the roof of the patrol car. PO Hart did not remember if he ever reached inside the fanny pack.

PO Wang did not mention any frisk or search of § 87(2)(b) during his interview.

The video does not show any frisk or search of § 87(2)(b)

Officers are justified in conducting a frisk for weapons prior to placing a civilian inside of a patrol car, even without a reasonable basis for fearing for their safety. People v. Smith, 134 AD3d 1453 (Board Review 15). When frisking a bag, an officer should run his hands down the outside

of the bag and open it only if it is soft and he feels the contours of what he believes is a weapon. PG 212-11 (Board Review16). In order to search a person, an officer must have probable cause to believe the person is either armed or has committed a crime. People v. Debour, 40 NY2d 210 (1976) (Board Review 17).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as **Exonerated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **Substantiated**.

Squad: 3

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date